SYNTHETIC TEST DOCUMENT · FICTIONAL PARTIES · FOR LEASEAI CAM TESTING ONLY

RETAIL / GROCERY LEASE AGREEMENT

The Ironwood Shops

4800 East Colfax Avenue, Denver, Colorado 80220

Suite 100, Floor 1

This Retail / Grocery Lease Agreement (the "Lease") is entered into as of March 1, 2022 by and between **Ironwood Retail Partners, LLC** ("Landlord") and **Pinnacle Grocery Company**, doing business as Pinnacle Fresh ("Tenant").

ARTICLE 1 — PARTIES AND NOTICE

1.1 Landlord Legal Name. The Landlord Legal Name is Ironwood Retail Partners, LLC. The Landlord Registered Address and Landlord Contact / Notice Address is 1601 Wewatta Street, Suite 700, Denver, Colorado 80202.

1.2 Tenant Legal Name. The Tenant Legal Name is Pinnacle Grocery Company. The Tenant Trade Name is Pinnacle Fresh. The Tenant Registered Address is 4800 East Colfax Avenue, Denver, Colorado 80220, Suite 100. There is no Guarantor. Guarantor Name(s): none.

ARTICLE 2 — PREMISES AND PROPERTY

2.1 Property Civic Address. The Property Civic Address is 4800 East Colfax Avenue, Denver, Colorado 80220, commonly known as The Ironwood Shops. The Property Legal Description is: Lot 8, Block 1, Ironwood Commercial Subdivision, City and County of Denver, Colorado. Building Class: Grocery-anchored strip center.

2.2 Premises. Landlord leases to Tenant Suite 100 on Floor 1 (Floor(s) Occupied: 1; Suite / Unit Number: Suite 100). The Premises Square Footage (RSF) is 8,000 rentable square feet. The Building Total Square Footage is 40,000 rentable square feet. Building Square Footage: 40,000 RSF.

ARTICLE 3 — TERM

3.1 Lease Type. This is a Triple Net (NNN) lease. Tenant pays Base Rent, its pro-rata share of CAM / Operating Cost Charges, real property taxes, and insurance as provided in this Lease.

3.2 Dates. Lease Commencement Date: March 1, 2022. Rent Commencement Date: April 1, 2022. Lease Expiration Date: February 28, 2032. Lease Term (Total Months): 120 months. Free Rent Period (months): 0 (none).

ARTICLE 4 — BASE RENT

4.1 Base Rent Schedule. Base Rent is calculated at Twenty-Eight and 00/100 Dollars ($28.00) per rentable square foot per year for Year 1, with a fixed two and one-half percent (2.5%) Annual Escalation Type (Fixed / CPI / Percentage) and Annual Escalation Rate or Cap of 2.5%. CPI Index Used: not applicable. Percentage Rent Clause: none. Gross Revenue Breakpoint: not applicable.

Base Rent Year 1 (monthly): $18,666.67. Full Rent Schedule (all years): Year 1 $224,000.00, increasing 2.5% annually for the remainder of the ten-year term.

ARTICLE 5 — SECURITY DEPOSIT AND PARKING

5.1 Security Deposit Amount: $37,333.34 (two months of Year 1 Base Rent). Security Deposit — Letter of Credit: not required. Security Deposit Reduction Schedule: none.

5.2 Parking — Number of Stalls: 40 customer stalls plus 8 employee stalls. Parking — Monthly Cost per Stall: $0.00 (included). Storage Space Included: rear dry-storage cage. Signage Rights: Tenant may install building-mounted grocery identification signage subject to Landlord approval and municipal code. Roof / Exterior Access Rights: Tenant may place rooftop refrigeration condensers subject to Landlord approval.

ARTICLE 6 — USE, ASSIGNMENT, AND IMPROVEMENTS

6.1 Permitted Use: supermarket and grocery store, including bakery, deli, pharmacy, and incidental retail uses. Prohibited Uses / Exclusivity Clause: Landlord shall not lease other premises in the center for a competing full-service grocery. Co-Tenancy Clause: none.

6.2 Subletting / Assignment Rights: Tenant may assign or sublet with Landlord's prior written consent, not to be unreasonably withheld. Subletting — Landlord Consent Required: Yes.

6.3 Tenant Improvement Allowance (TIA): $55.00 per RSF, equal to $440,000.00. TIA Conditions / Milestones: paid upon substantial completion of Tenant's initial grocery build-out and delivery of lien waivers. Alterations — Landlord Consent Threshold: any alteration exceeding $50,000.00 requires Landlord consent. ADA / Accessibility Compliance Responsibility: Landlord as to the center common areas; Tenant as to the Premises.

ARTICLE 7 — OPERATING EXPENSES AND CAM / OPERATING COST CHARGES

7.1 Base Year for Operating Expenses. The Base Year for Operating Expenses and the CAM Base Year is calendar year 2022. There is no Operating Expense Stop Amount and no CAM Stop Amount under this Lease (CAM Stop Amount: none / not applicable).

7.2 Tenant’s Pro-Rata Share. Tenant’s Premises Square Footage (RSF) is 8,000 and the Building Total Square Footage / Building Square Footage is 40,000. Tenant’s pro-rata share of CAM / Operating Cost Charges is 20.00% (8,000 ÷ 40,000 = 0.2000).

7.3 CAM Base Amount. Tenant’s CAM Base Amount for CAM Base Year 2022 is $80,000.00.

7.4 CAM Annual Increase Cap (%). Tenant’s CAM / Operating Cost Charges for any calendar year after the Base Year are subject to a CAM Annual Increase Cap (%) / CAM Escalation Cap of four percent (4%) of the CAM Base Amount. The CAM cap percentage is 4.0%. The maximum Tenant CAM charge in any year is therefore $83,200.00 (being the CAM Base Amount of $80,000.00 plus 4%). Has CAM Cap: Yes.

7.5 CAM Exclusions. Operating Expenses shall exclude, and Landlord shall not pass through, the following CAM Exclusions: capital improvements; parking lot reconstruction; HVAC replacement; roof replacement; and legal fees relating to other tenants. Capital improvements, parking lot reconstruction, HVAC replacement, and roof replacement are Landlord's sole cost.

7.6 Payment and Reconciliation. CAM Payment Frequency: MONTHLY. Tenant shall pay estimated CAM monthly together with Base Rent. Landlord shall deliver an annual CAM reconciliation statement within 90 days of calendar year end.

7.7 Tenant Audit Right. Tenant Audit Right: Yes. Tenant is ALLOWED to audit Landlord’s books and records relating to Operating Expenses. Audit Deadline: Within 60 days of receipt of the annual CAM reconciliation.

ARTICLE 8 — TAXES, INSURANCE, UTILITIES, AND MAINTENANCE

SYNTHETIC TEST DOCUMENT — FICTIONAL PARTIES — NOT A REAL LEASE OR INVOICE

8.1 Property Tax Responsibility: Tenant pays its pro-rata share of real property taxes separately from CAM. Property Insurance Responsibility: Landlord carries building insurance; Tenant's pro-rata share is billed as a CAM item. Tenant Insurance Requirements: commercial general liability, product liability, and property insurance covering Tenant's inventory and equipment. Tenant Liability Insurance Minimum: $5,000,000 per occurrence.

8.2 Utilities Responsibility: Tenant pays electricity, gas, and water serving the Premises directly; common-area utilities are CAM. HVAC Responsibility (Landlord / Tenant): Tenant for Premises HVAC; Landlord for common-area HVAC. HVAC Maintenance Obligation: Tenant for Premises units; Landlord for common-area units as a CAM expense for routine maintenance. Replacement of rooftop HVAC units is a CAM Exclusion. Janitorial Responsibility: Tenant for the Premises; Landlord for common areas (CAM). Structural / Roof Repair Responsibility: Landlord, and such costs are CAM Exclusions (not pass-through).

ARTICLE 9 — RENEWAL, EXPANSION, AND TERMINATION

9.1 Number of Renewal Options: two (2). Renewal Option Term Length: five (5) years each. Renewal Notice Deadline: twelve (12) months prior to the then-current expiration. Renewal Rent Basis (FMV / Fixed / CPI): Fair Market Value (FMV). Right of First Refusal: none. Right of First Offer: none. Expansion Option: none. Contraction / Reduction Option: none.

9.2 Early Termination Right: none. Termination Notice Period: not applicable. Early Termination Fee / Penalty: not applicable.

ARTICLE 10 — LEGAL AND COMPLIANCE

10.1 Hazardous Materials Clause: Tenant shall not introduce hazardous materials except customary office products. Governing Law Jurisdiction: State of Colorado. SNDA Agreement Required: Yes, Landlord shall use commercially reasonable efforts to obtain an SNDA from any mortgagee. Estoppel Certificate Obligation: Tenant shall execute an estoppel within fifteen (15) days after request.

10.2 Force Majeure Clause: neither party is liable for delay caused by events beyond its reasonable control. Dispute Resolution Mechanism: state court in Denver County, Colorado; mediation required before litigation. Holdover Provision (rate & notice): 150% of then-current Base Rent, month-to-month. Demolition / Redevelopment Clause: none.

10.3 Default Cure Period (Tenant): ten (10) days for monetary default; thirty (30) days for non-monetary default. Default Cure Period (Landlord): thirty (30) days.

ARTICLE 11 — SIGNATURES

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease as of the date first written above.

LANDLORD
Ironwood Retail Partners, LLC

By: _____
Name: David Chen, Managing Member
Date: March 1, 2022

TENANT
Pinnacle Grocery Company

By: _____
Name: Alicia Romero, Vice President, Real Estate
Date: March 1, 2022

SYNTHETIC TEST DOCUMENT — FICTIONAL PARTIES — NOT A REAL LEASE OR INVOICE